

CHAPTER 50.

An Act to expedite the procedure for empowering local authorities and statutory undertakers to execute works which will contribute to the relief of unemployment; to facilitate the acquisition by such authorities and undertakers of land and easements required for the purposes of their functions; and for purposes connected with the matters aforesaid. [1st August 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Procedure
for confer-
ring on local
authorities
and statu-
tory under-
takers
power to
execute
works.

1.—(1) Subject to the provisions of this Act, any powers required by a local authority or by statutory undertakers for the purpose of enabling them to execute works which will contribute to the relief of unemployment may be conferred on them by a scheme made, and confirmed by Parliament in accordance with the provisions of this section, and any such scheme may contain any provisions which might have been contained in a local Act.

(2) Any local authority or statutory undertakers requiring any such powers as aforesaid, may submit to the appropriate Minister the draft of a scheme containing such provisions as appear to them necessary for conferring those powers and any incidental, supplemental and consequential provisions necessary for giving full effect to the scheme, together with an estimate of the cost of the works proposed to be executed and the like plans and sections as they would have been required by the Standing Orders of either House of Parliament to deposit if they had proceeded by an application for a private Bill instead of under this section, and if the Minister is satisfied—

(a) that the works to be executed under the powers proposed to be conferred by the scheme will

materially contribute to the relief of unemployment; and

- (b) that the relief to unemployment will be materially expedited by reason of the powers being conferred by a scheme under this section instead of by a local Act; and
- (c) that the powers proposed to be conferred by the scheme are such as are customarily conferred on local authorities or statutory undertakers by local Acts; and
- (d) that the powers proposed to be conferred will not enable the local authority or statutory undertakers to undertake functions of a different nature from those already within their statutory powers;

he may, subject to the provisions of this section, make the scheme and submit it for confirmation by Parliament.

(3) A scheme under this section may authorise a local authority or statutory undertakers to acquire compulsorily and enter upon any land required for the purposes of the works to be executed under the powers proposed to be conferred by the scheme in like manner as if it had been an order under section two of this Act.

(4) Upon an application being made to the Minister for a scheme under this section—

- (a) the Minister shall, before making the scheme, require the applicants, in accordance with directions given by him, to serve notice of the application for the scheme upon every person upon whom, if they had proceeded by an application for a private Bill instead of under this section, they would have been required by such Standing Orders as aforesaid to serve notice of application for the Bill; to furnish to any authorities appearing to him to be affected such notices and documents as he may direct; and to give, in such manner as he may consider best adapted for informing any other persons affected, notice by public advertisement of the application for the scheme,

and of the manner in which and the time within which objections thereto may be made to him, and of the place where the draft scheme and such other documents as the Minister may direct may be inspected, and copies thereof made or purchased; so, however, that any such public advertisement shall be required to contain the like information, and to be published in the same newspapers and at the same intervals, and the like gazette notice thereof shall be required to be given as would, if the applicants had proceeded by an application for a private Bill instead of under this section. have been required by such Standing Orders as aforesaid;

- (b) the Minister shall, if he submits the scheme for confirmation by Parliament, also lay before Parliament his certificate that the requirements made by him under the last foregoing paragraph have been complied with.

(5) Before making any scheme under this section, the Minister may direct an inquiry to be held with respect to the draft thereof, and, if any objections are duly made to any such draft scheme and not withdrawn, the Minister shall not make the scheme until such an inquiry has been held with respect to the objections.

11 & 12
Geo. 5. c. 7. (6) Where any such inquiry is directed to be held, the inquiry shall be held at such place as may be determined by the Minister by a tribunal consisting of one or more persons nominated by him (not being persons having any interest in the subject matter of the inquiry), and section one of the Tribunals of Inquiry (Evidence) Act, 1921, shall apply to the tribunal as if the tribunal had been established and that Act had been applied thereto in manner provided by that Act; and the tribunal shall, as soon as may be after holding the inquiry, make a report to the Minister recommending whether the scheme should be made and if made, what modifications, if any, should, in the opinion of the tribunal, be made in the draft scheme.

The costs incurred by any tribunal in relation to any such inquiry with respect to a draft scheme (including the

remuneration of any member of the tribunal) shall, save in so far as the whole or any part thereof may be ordered by the Minister to be paid by any person whose objection is reported by the tribunal to have been frivolous, be paid by the local authority or statutory undertakers by whom the draft scheme was submitted to the Minister, and the Minister may certify the amount of the costs so payable by any person, authority or undertakers, and any sum so certified shall be a debt to the Crown from that person, authority or undertakers, as the case may be.

(7) The public shall be entitled to be present at any hearing by a tribunal of an inquiry under this section and any person appearing to the tribunal to be interested may appear in person or by counsel, solicitor or parliamentary agent.

(8) Upon receiving the report of any such tribunal with respect to a draft scheme, the Minister may, after considering the report and making in the draft scheme such modifications, if any, as appear to him to be necessary, make the scheme in the terms of the draft and shall, if he submits the scheme for confirmation by Parliament, also lay the report before Parliament.

(9) A scheme under this section shall be of no effect unless confirmed by Parliament, and if the Minister submits a scheme for such confirmation, he shall do so by introducing in Parliament a Bill to confirm the scheme, and the Bill, after introduction, shall be deemed to have passed through all its stages up to and including Committee and shall be ordered to be considered in either House as if reported from a Committee, and when the Bill has been read a third time and passed in the first House of Parliament the like proceedings shall be taken in the second House of Parliament.

(10) Any scheme under this section may be amended or revoked by means of a subsequent scheme submitted to Parliament by the appropriate Minister on the application of any local authority or statutory undertakers having powers under the original scheme, and the foregoing provisions of this section shall, so far as

applicable, apply to any such subsequent scheme in like manner as to the original scheme.

Power to
make orders
authorising
local autho-
rities and
statutory
undertakers
to purchase
land com-
pulsorily for
certain
purposes.

2.—(1) Any local authority or statutory undertakers may be authorised to purchase land compulsorily for any of the purposes specified in Part I of the First Schedule to this Act by means of an order (in this Act referred to as a “compulsory purchase order”) made and submitted to the appropriate Minister and confirmed by him in accordance with the provisions of Part II of that Schedule, and the provisions of Part III of that Schedule shall have effect with respect to the validity and date of operation of any such order:

Provided that—

15 & 16
Geo. 5. c. 14.

- (a) sections one hundred and three to one hundred and five of the Housing Act, 1925 (which impose restrictions on the acquisition of commons, open spaces and certain other lands) shall apply with respect to any order made under this section as if those sections were herein re-enacted with the necessary adaptations and in terms made applicable thereto, but subject to the modification that references in the said sections to “the Minister” shall be construed as references to “the appropriate Minister” except the reference in subsection (2) of the said section one hundred and four which shall be construed as a reference to the Minister of Health; and
- (b) where an enactment in force immediately before the commencement of this Act, which authorises the compulsory acquisition of land for any purpose for which land has been authorised to be acquired compulsorily by an order made under this section, contains a provision that the arbitrator in determining the amount of any disputed compensation shall have regard to the extent to which the remaining and contiguous lands and hereditaments belonging to the same proprietor may be benefited by the proposed work for which

the land is authorised to be acquired, that provision shall have effect as respects land authorised to be acquired compulsorily by the said order.

(2) Where any local authority or statutory undertakers are by any such order as aforesaid authorised to purchase land compulsorily, then, at any time after notice to treat has been served, the local authority or statutory undertakers may, after giving to the owner and occupier of the land not less than fourteen days' notice, enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections eighty-four to ninety of the Lands Clauses (Consolidation) Act, 1845, but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with. 8 & 9 Vict c. 18.

3. Nothing in this Act shall authorise the compulsory acquisition of any land which is the property of any local authority or has been acquired by any statutory undertakers for the purposes of their undertaking, but any scheme or order confirmed under this Act may authorise a highway authority to acquire compulsorily, subject to any conditions imposed by the scheme or order, an easement or right in, to, or over any such land for the purposes of the construction, improvement, or enlargement of any bridge under or over such land or of the approaches to any such bridge; and any such scheme or order may be made for that purpose notwithstanding that the scheme or order does not authorise the purchase of any land: Provisions as to land belonging to local authorities and public undertakings.

Provided that any scheme or order authorising a highway authority to acquire compulsorily an easement or right for the purpose of substituting a bridge for any level crossing over a railway shall make provision as to the authority or person by whom the bridge and the approaches thereto are to be maintained, and the provisions of sections six and seven of the Bridges Act, 1929, shall, as set out with modifications in the Second Schedule to this Act, apply with respect to the apportionment of the expenses of the construction and maintenance thereof. 19 & 20 Geo. 5. c. 33.

Amendment
of 10 & 11
Geo. 5. c. 57.
s. 2 (1).

4. The following provisions shall have effect with respect to subsection (1) of section two of the Unemployment (Relief Works) Act, 1920, that is to say—

- (a) the word “arterial” shall be omitted;
- (b) it is hereby declared that in the proviso the expression “building or structure” does not include any fence of whatsoever material built or constructed.

Amendment
of 9 & 10
Geo. 5. c. 100.

5. Upon the submission to the Minister of Transport of any special order made by the Electricity Commissioners under the Electricity (Supply) Acts, 1882 to 1928, if the Minister is satisfied—

- (a) that in accordance with rules made by the Commissioners under section thirty-four of the Electricity (Supply) Act, 1919, sufficient notice of the application for the order has been given for informing all persons to be affected thereby; and
- (b) that there is no unwithdrawn objection thereto other than an objection which, in his opinion, is frivolous or has been removed by amendments made to the order by the Commissioners,

then, notwithstanding anything in subsection (2) of section thirty-five of the last-mentioned Act, he may, in lieu of complying with the requirements of the Schedule to that Act, give notice of his intention to confirm the order without complying with those requirements to any person who has made to the order an objection which has not been withdrawn, but which appears to the Minister to be frivolous or to have been removed by amendments made to the order by the Commissioners, and, after considering any representations made by any such persons, the Minister may confirm the special order in like manner as if a public inquiry had been held under that Schedule and lay it before Parliament in manner provided by the said Acts.

Interpreta-
tion.

6.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“Appropriate Minister” means, in relation to any scheme or order to be made or confirmed, or certificate to be given under this Act on the

application of any local authority or statutory undertakers, the Secretary of State or other Minister in charge of the Government Department concerned with the functions of the authority or undertakers to which the scheme, order or certificate relates :

“Local Act” includes any Provisional or other Order having the force of an Act :

“Local authority” means any body having power to levy a rate or to issue a precept to a rating authority; and “rate” and (except in relation to London) “rating authority” have the same meanings respectively as in the Rating and Valuation Act, 1925 :

15 & 16
Geo. 5. c. 90.

“Prescribed” means prescribed by the appropriate Minister :

“Statutory undertakers” means any persons authorised by any public, general, or local Act to construct, work or carry on any railway, canal, inland navigation, dock, harbour, tramway, gas, electricity, water, or other public undertaking.

(2) If any question arises as to who was or is the appropriate Minister in relation to any scheme or order made or confirmed or to be made or confirmed or certificate given or to be given under this Act, the question shall be referred to and determined by the Treasury whose decision shall for all purposes be final.

(3) A scheme under section one of this Act shall not be deemed to be a Provisional Order.

7. This Act shall apply to Scotland subject to the following modifications :—

Application
to Scotland.

(a) in section one “appropriate Minister” means the Secretary of State;

(b) for any reference to sections eighty-four to ninety of the Lands Clauses (Consolidation) Act, 1845, there shall be substituted a reference to sections eighty-three to eighty-eight of the Lands Clauses Consolidation (Scotland) Act, 1845; the expression “easement” shall mean “servitude”; the expression “local authority” means a county or town council; and the expression “lands and hereditaments” shall mean “lands and heritages”;

§ & 9 Vict.
c 19.

- (c) for paragraph (a) of the proviso to subsection (1) of section two the following paragraph shall be substituted—

15 & 16
Geo. 5. c. 15.

(a) Sections eighty-six to eighty-eight of the Housing (Scotland) Act, 1925 (which impose restrictions on the acquisition of commons, open spaces, and certain other lands) shall apply as if these sections were herein re-enacted with the necessary adaptations and in terms made applicable thereto, but subject to the modification that references to “the Board” shall be construed as references to “the appropriate Minister,” except the reference in subsection (2) of the said section eighty-seven which shall be construed as a reference to the Department of Health for Scotland;

8 & 9 Vict.
c. 20.

- (d) for references to section ninety-two and to sections one hundred and twenty-seven to one hundred and thirty-two of the Lands Clauses Consolidation Act, 1845, there shall be substituted respectively references to section ninety and to sections one hundred and twenty to one hundred and twenty-five of the Lands Clauses Consolidation (Scotland) Act, 1845; for references to section seventy-seven and to sections seventy-eight to eighty-five of the Railways Clauses Consolidation Act, 1845, there shall be substituted respectively references to section seventy and to sections seventy-one to seventy-eight of the Railways Clauses Consolidation (Scotland) Act, 1845;

8 & 9 Vict.
c. 33.

- (e) for any reference to a municipal corporation there shall be substituted a reference to a town council; for any reference to section one hundred and five of the Municipal Corporations Act, 1882, there shall be substituted a reference to section three hundred and fifteen of the Burgh Police (Scotland) Act, 1892; and for any reference to section one hundred and sixteen of the Housing Act, 1925, and for any reference therein to the Minister of Health, there shall be substituted respectively a reference to section ninety-six of the Housing (Scotland) Act, 1925,

45 & 46 Vict.
c. 50.

55 & 56 Vict.
c. 55.

and a reference therein to the Scottish Board of Health;

- (f) sub-paragraph (b) of paragraph 2 of Part II and paragraph 6 of Part III of the First Schedule shall not apply;
- (g) for references to the High Court or to the Court of Appeal there shall be substituted references to the Court of Session, and for references to prohibition or certiorari there shall be substituted references to reduction or interdict and any application to the Court of Session under paragraph two of Part III of the First Schedule shall be by summary petition.

8.—(1) This Act may be cited as the Public Works Short title,
extent,
saving and
duration.
Facilities Act, 1930.

^a (2) This Act shall not extend to Northern Ireland.

(3) All powers given by this Act shall be in addition to and not in derogation of any other powers conferred by any other Act.

(4) This Act shall continue in force until the thirty-first day of December, nineteen hundred and thirty-two, and no longer unless Parliament otherwise determines:

Provided that the expiry of this Act shall not—

- (a) affect the previous operation thereof or anything duly done or suffered thereunder; or
- (b) affect any right, privilege, obligation or liability acquired, accrued or incurred or any scheme or order having effect thereunder; or
- (c) affect any legal proceeding, arbitration, remedy or investigation in respect of such right, privilege, obligation or liability as aforesaid;

and any such legal proceeding, arbitration, remedy or investigation may be instituted, enforced or continued as if this Act had not expired.

SCHEDULES.

FIRST SCHEDULE.

COMPULSORY PURCHASE ORDERS.

PART I.

PURPOSES FOR WHICH THE PURCHASE OF LAND MAY BE AUTHORISED BY A COMPULSORY PURCHASE ORDER.

1. Any purpose for which the local authority or statutory undertakers with respect to whom the order is made could be authorised to acquire compulsorily the land with respect to which it is made by an order having effect (either with or without approval by Parliament) under some enactment in force immediately before the commencement of this Act.

2. The provision of aerodromes under the Air Navigation Act, 1920.

3. The provision of open spaces by councils of metropolitan boroughs.

4. The provision by a municipal corporation of any building for which they are authorised to purchase land by section one hundred and five of the Municipal Corporations Act, 1882.

PART II.

PROCEDURE WITH RESPECT TO THE MAKING, SUBMISSION AND CONFIRMATION OF COMPULSORY PURCHASE ORDERS.

1. A compulsory purchase order shall be in the prescribed form and shall describe by reference to a map the land to which it applies, and shall incorporate, subject to the modifications hereinafter mentioned and any necessary adaptations—

- (a) the Lands Clauses Acts (except section ninety-two of the Lands Clauses Consolidation Act, 1845);
- (b) section seventy-seven of the Railways Clauses Consolidation Act, 1845, and sections seventy-eight to eighty-five of that Act; and
- (c) in the following cases the Acquisition of Land (Assessment of Compensation) Act, 1919, that is to say, in the case of an order made by a local authority, or by a public authority within the meaning of that Act:

Provided that the Minister may direct with respect to any such order made by a local authority that the order shall not incorporate sections one hundred and twenty-seven to one hundred and thirty-three of the Lands Clauses Consolidation Act, 1845, or any of those sections.

1ST SCH.
—cont.

2. The modifications, subject to which the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act, 1919, shall be incorporated in the order are as follows:—

- (a) In lieu of section ninety-two of the Lands Clauses (Consolidation) Act, 1845, the following provisions shall have effect—

No person shall be required to sell a part only of any house, building, or manufactory or of any land which forms part of a park or garden belonging to a house if he is willing and able to sell the whole of the house, building, manufactory, park or garden, unless the arbitrator determines that in the case of a house, building, or manufactory such part as is proposed to be taken can be taken without material detriment to the house, building, or manufactory, or in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house and, if he so determines, he may award compensation in respect of the severance of the part so proposed to be taken, in addition to the value of that part, and thereupon the person interested shall be required to sell to the local authority or statutory undertakers that part of the house, building, manufactory, park or garden; and

- (b) where any land to which an order relates is glebe land or other land belonging to an ecclesiastical benefice, the order shall provide that sums agreed upon or awarded for the purchase of the land, or to be paid by way of compensation for damage to be sustained by the owner by reason of severance or injury affecting the land, shall not be paid as directed by the Lands Clauses Acts, but shall be paid to the Ecclesiastical Commissioners, to be applied by them as money paid to them upon a sale, under the provisions of the Ecclesiastical Leasing Acts, of land belonging to a benefice.

3. Before submitting the order to the Minister the local authority or statutory undertakers shall—

- (a) publish in one or more newspapers circulating within the district in which they exercise their functions a notice in the prescribed form stating the fact of such

1st Sch.
—cont.

an order having been made and describing the area comprised therein, and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours; and

- (b) serve, in the prescribed manner on every owner, lessee and occupier (except tenants for a month or less period than a month) of any land included in the area to which the order relates a notice in the prescribed form stating the effect of the order and that it is about to be submitted to the Minister for confirmation, and specifying the time within and the manner in which objections thereto can be made.

4. If no objection is duly made by any of the persons upon whom notices are required to be served, or if all objections so made are withdrawn, the Minister may, if he thinks fit, confirm the order with or without modification, but in any other case he shall, before confirming the order, cause a public local inquiry to be held, and shall consider any objection not withdrawn and the report of the person who held the inquiry, and may then confirm the order either with or without modification :

Provided that—

- (a) the Minister may require any person who has made an objection to state in writing the grounds thereof, and may confirm the order without causing a public local inquiry to be held if he is satisfied that every objection duly made relates exclusively to matters which can be dealt with by the arbitrator by whom the compensation is to be assessed ;
- (b) the order as confirmed by the Minister shall not authorise the local authority or statutory undertakers to purchase compulsorily any land which the order would not have authorised them so to purchase if it had been confirmed without modification.

Section one hundred and sixteen of the Housing Act, 1925, shall apply with respect to any public local inquiry held under this Part of this Schedule as if for references therein to the Minister of Health and to that Act there were therein substituted respectively references to the appropriate Minister and to this Part of this Schedule.

5. In construing for the purpose of this Part of this Schedule or any order made thereunder any enactment incorporated in the order this Act, together with the order, shall be deemed to be the special Act, and the local authority or statutory undertakers shall be deemed to be the promoters of the undertaking.

PART III.

1ST SCH.
—cont.PROVISIONS WITH RESPECT TO THE VALIDITY AND DATE
OF OPERATION OF COMPULSORY PURCHASE ORDERS.

1. As soon as may be after the compulsory purchase order has been confirmed by the Minister, the local authority or statutory undertakers, as the case may be, shall publish in a newspaper circulating in the district to which the order relates a notice in the prescribed form stating that the order has been confirmed, and naming a place where a copy of the order as confirmed and of the map referred to therein may be seen at all reasonable hours, and shall serve a like notice on every person who, having given notice to the Minister of his objection to the order, appeared at the public local inquiry in support of his objection.

2. If any person aggrieved by an order desires to question its validity on the ground that it is not within the powers of this Act or that any requirement of this Act has not been complied with, he may, within twenty-one days after the publication of the notice of confirmation, make an application for the purpose to the High Court, and if any such application is duly made the court, if satisfied that the order is not within the powers of this Act or that the interests of the applicant have been substantially prejudiced by any requirement of this Act not having been complied with, may quash the order either generally or in so far as it affects any property of the applicant.

3. Subject to the provisions of the last preceding paragraph, an order shall not, either before or after its confirmation, be questioned, by prohibition or certiorari or in any legal proceedings whatsoever, and shall become operative at the date on which notice of its confirmation is published in accordance with the provisions of paragraph 1 of this Part of this Schedule.

4. Except by leave of the Court of Appeal, no appeal shall lie to the House of Lords from a decision of the Court of Appeal in proceedings under this Part of this Schedule.

5. As soon as may be after an order has become operative, the local authority or statutory undertakers, as the case may be, shall serve a copy thereof on every person on whom a notice was served by them of their intention to submit the order to the Minister for confirmation.

6. Until rules of court are made regulating the procedure on applications to the High Court under this Part of this Schedule, the following temporary rules shall have effect with respect thereto—

- (i) The application shall be made by an originating notice of motion to a judge of the High Court selected for the purpose by the Lord Chancellor:

1ST SCH.
— cont.

- (ii) The notice of motion shall state the grounds for the application, and the date mentioned in the notice for the hearing of the application shall be not less than eight days after the service of the notice :
- (iii) The notice of motion shall be served before the expiration of twenty-one days after the publication of the notice of confirmation of the order to which the application relates on the local authority or statutory undertakers by whom the order was made and on the Minister, and shall be entered at the Crown Office within the same period :
- (iv) The evidence upon the hearing of the application shall be by affidavit except in so far as the Court at the hearing may direct oral evidence to be given :
- (v) The ordinary practice and rules of the King's Bench Division shall apply so far as they are applicable, and are not inconsistent with the provisions of this Act or of these temporary rules.

SECOND SCHEDULE.

PROVISIONS OF 19 & 20 GEO. 5. c. 33. APPLIED WITH MODIFICATIONS TO SCHEMES AND ORDERS FOR THE COMPULSORY ACQUISITION OF RIGHTS TO SUBSTITUTE BRIDGES FOR LEVEL CROSSINGS OVER RAILWAYS.

Apportion-
ment of
costs.

6.—(1) The expenses of the construction and maintenance of the bridge and the approaches thereto shall be paid either wholly by the highway authority, or partly by the highway authority and partly by the persons by whom the easement or right is granted (hereinafter referred to as "the grantors"), as in default of agreement may be determined by arbitration :

Provided that, unless otherwise agreed—

- (a) any additional expense incurred by the grantors by reason of any alteration of the railway due to the provisions of the scheme or order, not being provisions applied for by the grantors for the improvement of their undertaking shall be defrayed by the highway authority :
- (c) except so far as any additional expense is due to works executed at the instance of the grantors for the improvement of their undertaking, the grantors'

share of the expense of the construction or maintenance shall be an amount equivalent to the estimated saving to the grantors by reason of the substitution of the bridge for the level crossing.

2ND SCH.
—cont.

(2) Any additional expense incurred by the grantors after and in consequence of the construction of the bridge in connection with the widening or alteration of the railway under or over the bridge or the approaches thereto shall be defrayed by the highway authority; and any question whether such additional expense has been so incurred or as to the amount thereof shall, in default of agreement, be determined by arbitration.

7.—(2) Where under the foregoing provisions of this Schedule the grantors are required to contribute to the expenses of a highway authority, the contribution shall, at the option of the grantors, be either—

Arbitration,
&c.

- (a) a lump sum; or
- (b) an annual payment for such amount and continuing for such number of years as, in default of agreement, may be determined by arbitration; or
- (c) an annual payment continuing indefinitely of such amount as, in default of agreement, may be determined by arbitration.

(3) Any such lump sum and so much of any such annual payment as represents capital shall be applied by the highway authority for the purposes for which capital money is applicable by them, and any question as to what part of any such annual payment represents capital shall be determined by the Minister of Health.

CHAPTER 51.

An Act to impose, in the interests of safety, precautions to be observed in the construction, alteration, and use of reservoirs, and to amend the law with respect to liability for damage and injury caused by the escape of water from reservoirs.
[1st August 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present